

26CMCV00398 26CMCV00398

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-18

Motion: DEFENDANT KIA AMERICA, INC.'S MOTION FOR JUDGMENT ON THE PLEADINGS

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Case Number: 26CMCV00398 Hearing Date: August 18, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

ANTIONETTE ALEXANDER, an individual,

Plaintiff,

vs.

KIA

AMERICA, INC., et al.,

Defendants.

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CASE NO: 26CMCV00398

[TENTATIVE]

ORDER RE: DEFENDANT

KIA AMERICA, INC.'S MOTION FOR JUDGMENT ON THE PLEADINGS

Dept.

A

DATE:

August 18, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 2/27/26

TRIAL:

3/19/29

MOVING PARTY: Defendant

Kia America, Inc.

RESPONDING PARTY: Plaintiff

Antionette Alexander

1. Background

Plaintiff Antionette Alexander ("Plaintiff") alleges that on December 4, 2019, she purchased a 2020 Kia Optima, VIN: 5XXGT4L39LG422564 ("the Subject Vehicle"). Plaintiff further alleges that Defendant Kia America, Inc. ("Kia") failed to repair the Subject Vehicle within a reasonable number of attempts after it manifested defects and nonconformities during the warranty period.

On February 27, 2026, Plaintiff filed the operative Complaint against Kia and DOES 1 through 10 (collectively, "Defendants"), alleging causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of the Song-Beverly Act Section 1793.2.

On April 3, 2026, Kia filed its Answer to the Complaint.

On July 24, 2026, Kia filed the instant Motion for Judgment on the Pleadings. On August 5, 2026, Plaintiff filed an Opposition. On August 11, 2026, Kia filed a Reply.

2. Discussion

a. Meet and Confer

Before

filing a judgment on the pleadings pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by videoconference with the party who filed the pleading that is subject to the motion for judgment on the pleadings for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion for judgment on the pleadings..." (Code Civ. Proc., § 439, subd. (a).)

Here, Kia's counsel of record, Olivia Avelino, attests to the following meet and confer efforts: "On July 22, 2026, I met and conferred telephonically with counsel for Plaintiff, Joon Kim, regarding this Motion. We were not able to come to an agreement regarding the grounds on which KA brings this Motion therefore necessitating its filing." (Avelino Decl., ¶2.) Thus, the Court finds that Kia fulfilled its meet and confer obligations.

b. Merits of Motion

A defendant may move for judgment on the pleadings on the grounds that: (1) the court has no jurisdiction of the subject of the cause of action alleged in the complaint; or (2) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc. § 438, subd. (c)(1)(B).) ۞۞۞

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322 [citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216].) ۞Any defects must either appear on the face of the pleading, or else be taken by judicial notice. (*Id.* at 321-22.) The parties' ability to prove their respective claims is of no concern. (*Cloud, supra*, 67 Cal.App.4th 995 at 999.) Though the Court must accept the allegations of the complaint and answer as true (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515), it will not do so for "conclusions of law or fact, opinions, speculation, or allegations contrary to law or [judicially noticed] facts...." (*Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc.* (2006) 138 Cal.App.4th 1215, 1219-20.) ۞۞

"On a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action." (*Lowry v. Port San Luis Harbor Dist.* (2020) 56 Cal.App.5th 211, 221 [internal quotations omitted].) "The burden of proving such reasonable possibility is squarely on the plaintiff." (*Id.*)

Here, Kia moves for judgment on the pleadings on the grounds that the Complaint does not state facts sufficient to constitute any cause of action against Kia because it is time-barred on its face. (See *Anderson v. McNally* (1957) 150 Cal.App.2d 778, 783 [“[T]he California courts have consistently held that a demurrer which raises the defense that a statute of limitation bars the action cannot be sustained unless the facts alleged in the complaint show that the action is barred. If all that appears from the facts alleged is that the action might be barred, the defense cannot be raised by demurrer.”]; *Pike v. Zadig* (1915) 171 Cal. 273, 277, disapproved of on other grounds by *Decesare v. Lembert* (1983) 144 Cal.App.3d 20, stating [“a demurrer on the ground of the bar of the statute of limitations does not lie, where the complaint merely shows that the action may have been barred. It must appear affirmatively that, upon the facts stated, the right of action is necessarily barred.”].)

One-Year Post-Warranty Expiration

To the extent that Kia contends Plaintiff's claims are barred by Code of Civil Procedure Section 871.21, subdivision (a), which states: “An action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty,” the court disagrees.

The Complaint alleges, inter alia, that Plaintiff purchased the Subject Vehicle on December 4, 2019. (Compl., ¶8.) Plaintiff received a 5-year/60,000 mile express bumper-to-bumper warranty; 10-year/100,000 mile powertrain warranty; and various emissions warranties that exceed the time and mileage limitations of the bumper-to-bumper and powertrain warranties. (Id., ¶9.) The Subject Vehicle was delivered to Plaintiff with serious defects and nonconformities to warranty including, but not limited to, electrical, emission, and engine system defects. (Id., ¶10.)

Taking these allegations as true, Plaintiff's claims are not time-barred under Code of Civil Procedure Section 871.21, subdivision (a). Undoubtedly, the bumper-to-bumper warranty did expire on December 4, 2024, thus any cause of action based on that express warranty must have been filed by December 4, 2025. However, the Complaint also alleges defects and nonconformities covered by the powertrain warranty, which expires on December 4, 2029 because it would be ten (10) years from the alleged date of purchase. Likewise, the Complaint alleges that the Subject Vehicle has other express warranties that exceed the bumper-to-bumper and powertrain warranties time

limitations. As such, it does not appear on the face of the Complaint that Plaintiff's claims are time-barred under Code of Civil Procedure Section 871.21, subdivision (a).

Six-Year Statute of Repose

Next, Kia argues that Plaintiff's claims are time-barred by Code of Civil Procedure Section 871.21, subdivision (b), which provides in pertinent part that: "Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b).) Unlike Code of Civil Procedure Section 871.21, subdivision (a), this subsection operates regardless of the underlying warranty length because it imposes an absolute outer time limit of six years from the date of the original delivery of the vehicle to file a Song-Beverly Act ("SBA") claim.

As discussed above, the Complaint alleges that Plaintiff purchased the Subject Vehicle on December 4, 2019, which is the date of the original delivery. (Compl., ¶8.) Therefore, Plaintiff had until December 4, 2025 to file any SBA claims against Kia. Accordingly, Plaintiff's SBA claims are time-barred per Code of Civil Procedure Section 871.21, subdivision (b) unless the Complaint sufficiently alleges facts to support statutory tolling under Code of Civil Procedure Section 871.21, subdivision (c).

Complaint Fails to Allege Statutory Tolling

"The time periods prescribed in subdivisions (a) and (b) shall be tolled as follows:

[¶](1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable. [¶](2) For the time the motor vehicle is out of service by reason of repair for any nonconformity. [¶](3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days." (Code Civ. Proc., § 871.21, subd. (c).)

In opposition, Plaintiff concedes that the Complaint does not allege any facts to support tolling. (Opp. at 5:7-19; Kim Decl., ¶12.) Instead, Plaintiff asserts that she can allege facts demonstrating the applicability of the statutory

tolling provisions including facts about compliance with the pre-suit notice and the time period the Subject Vehicle was out of service for repairs for the nonconformities alleged in the Complaint. (Opp. at 5:20-25; Kim Decl., ¶¶3-5, Exs. A-C.)

3. Conclusion

Based on the foregoing, the court GRANTS Defendant Kia America, Inc.'s Motion for Judgment on the Pleadings with 30 days leave to amend.

Defendant

Kia America, Inc. is ordered to give notice.

IT

IS SO ORDERED.

DATED: August 18, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court